

[quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884].) “Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.]” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 [motion for summary adjudication moot based on filing of amended complaint].) “The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment.” (*Ibid.*)

Conclusion

Based on the above, Defendant McDonald’s Corporation’s Motion for Summary Judgment is **denied as moot**. Plaintiff no longer has any claims against McDonald’s Corporation as of the filing of the of the Amendment to Complaint, which as approved by this Court on May 15, 2026.

15. 9:00 AM CASE NUMBER: C25-00694
CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC
HEARING ON SUMMARY MOTION FILED BY DEFT BAY AREA RESTAURANT MANAGEMENT CORPORATION
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Bay Area Restaurant Management Corporation’s Motion for Summary Judgment, or in the alternative, Summary Adjudication (“MSJ”).

Allegations of the Complaint

On September 11, 2023, Plaintiff went through the drive-thru of a McDonald’s restaurant located at 4440 Lone Tree Way, Antioch, California (the “Store”). (§§ 7, 22.) She purchased a hot tea. (§ 22.) As the tea was being passed to Plaintiff in her vehicle, the lid popped off the cup. (*Ibid.*) The hot liquid spilled onto Plaintiff’s lap, causing burns. (*Ibid.*)

Plaintiff filed her complaint on March 12, 2025, against Defendants McDonald’s Corporation and Bay Area Restaurant Management Corporation (“BARM”). It is alleged that BARM is a franchisee of Defendant McDonald’s, and that it owned, operated, managed, and controlled the Store at all relevant times. (§§ 8-9.)

Based on the above, Plaintiff alleges two causes of action against moving Defendant BARM: (1) negligence, and (2) products liability.

Standard for Continuance of Summary Judgment

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” (Code Civ. Proc. § 437c(h).) If the showing required under Code of Civil Procedure § 437c(h) is made, relief is nearly mandated because the stakes in a summary judgment motion are so high. (*Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, 643; *Insalaco v. Hope Lutheran Church of West Contra*

Costa County (2020) 49 Cal. App. 5th 506, 517, 519 [even if there is lack of diligence by the party seeking the continuance, “the court’s discretion to deny a continuance is strictly limited.”].)

The declaration in support of a continuance under Code of Civil Procedure section 437c(h) must demonstrate “(1) the facts to be obtained are essential to opposing the motion, (2) there is reason to believe such facts may exist, and (3) the reasons why additional time is needed to obtain these facts. [Citations omitted.] The reason for this ‘exacting requirement’ [citation omitted] is to prevent ‘every unprepared party who simply files a declaration stating that unspecified essential facts may exist’ [citation omitted] from using the statute ‘as a device to get an automatic continuance’ [citation omitted].” (*Chavez v. 24 Hour Fitness USA, Inc.*, *supra*, 238 Cal.App.4th at 643 [citing and quoting *Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 715, 716].) Even if the opposing party fails to make the showing necessary for a continuance under Code of Civil Procedure section 437c(h), the Court may grant a continuance in its discretion if good cause is shown. (*Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 716.)

Analysis

This matter pertains the passing of a hot tea from a restaurant employee to Plaintiff wherein the hot tea ended up spilling on Plaintiff and injuring her. The main theory of Plaintiff’s case relates to the preparation of the hot tea, including the way the cup and lid were put onto the cup and how the beverage was passed to Plaintiff. It appears that this transaction included, essentially, two people: Plaintiff and Marleny Majano – the employee that prepared and handed the beverage to Plaintiff.

Plaintiff’s counsel provides a declaration indicating that they have ‘acted diligently in pursuing discovery necessary’ to oppose BARM’s MSJ. (Yaghoobian Decl. ¶ 12.) This included noticing the deposition of Ms. Majano. (*Id.* ¶ 13.) However, as of the time the opposition was filed, that deposition had not taken place. (*Id.* ¶ 15.) As noted by Plaintiff, “Ms. Majano is the only known percipient witness with firsthand knowledge regarding the actual preparation and handoff of Plaintiff’s beverage.” (*Id.* ¶ 16.)

Defendant BARM has taken the deposition of Plaintiff and includes portions of her testimony as evidence to support its MSJ. Defendant also provides a declaration of Ms. Majano to support its motion. As noted above, Plaintiff has not had an opportunity, however, to depose Ms. Majano to explore her memory of what happened that day – or to scrutinize what is included in her declaration.

Plaintiff’s counsel explains in detail why Ms. Majano’s “testimony is essential” to Plaintiff’s case. (Yaghoobian Decl. ¶ 17.) This appears especially true given that she is the sole person (other than Plaintiff) to have first-hand knowledge of the incident. Given that Defendant submits a declaration from her in support of its motion, fairness and due process dictate that Plaintiff be given an opportunity to depose Ms. Mejano before ruling on Defendant’s MSJ.

Plaintiff’s counsel also indicates that discovery is incomplete regarding Defendant’s “training materials and operational procedures,” which may include information relevant to her Plaintiff’s claims. (*Id.* ¶¶ 19-23.) Other areas of discovery, including BARM’s person most knowledgeable deposition have also not been completed. (*Id.* ¶¶ 24-37.)

While the Court cannot, and will not at this time, determine that all the items identified by Plaintiff

are necessary to be completed before Plaintiff can properly oppose the MSJ, Plaintiff is entitled to additional discovery – including the deposition of Ms. Majano – before the Court can properly rule on Defendant’s MSJ.

On Reply, Defendant BARM argues that Plaintiff has not been diligent in conducting discovery and that it is her “own failure of due diligence that leaves her lacking evidence and wanting discovery.” (Reply at 1:26-27.) It outlines the supposed deficiencies and lack of diligence in its reply. (Reply at e.g. 2:6-14.) It does not, however, provide any evidence to support these arguments.

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) “The allegations of a brief are not evidence and a brief is not a sworn document.” (*In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515.)

If Defendant contends that Plaintiff’s discovery conduct was lacking, it should provide evidence of the alleged failures to properly and efficiently conduct discovery. For example, providing copies of Plaintiff’s discovery requests showing the lack of material requests, declarations confirming Plaintiff failed to notice relevant depositions, or copies of meet and confer letters explaining the delay. Defendant proclaims the Plaintiff includes “no dates” and “no emails” to support her plea for continuance. Plaintiff’s counsel does, however, provide a declaration indicating that they were diligent in conducting discovery and outlining the issues they believe are still outstanding. Defendant fails to provide any dates or emails – or any declaration – supporting its position.

While lack of diligent can support the denial of a request for additional time to conduct discovery, “when a party submits an affidavit demonstrating that facts essential to justify opposition may exist but have not been presented to the court because the party has not been diligent in searching for the facts through discovery, the court’s discretion to deny a continuance is strictly limited.” (*Insalaco*, supra, 49 Cal.App.5th at 519.) Where counsel states with particularity the necessary discovery, “the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency.” (*Id.* at 520 quoting *Bahl v Bank of America* (2001) 89 Cal.App.4th 389, 398.)

Other factors that “militate[] in favor of a continuance in this case” include that “[n]o trial date ha[s] been set and discovery remain[s] open,” and that no “prior continuances had been sought or granted.” (*Ibid.*)

As the Court finds Plaintiff has met the requirements of section 437c (h), it “**shall** deny the motion, order a continuance to permit ... discovery to be had, or make any other order as may be just.” (Code Civ. Proc. § 437c (h), emphasis added.) Even if the opposing party fails to make the showing necessary for a continuance under Code of Civil Procedure section 437c(h), the Court may grant a continuance in its discretion if good cause is shown. (*Lerma*, supra, 120 Cal.App.4th at 716.)

Given that this matter is still relatively new, being just over a year old, the Court will deny Defendant’s motion without prejudice to Defendant filing a new motion at a later date. This will ensure that both parties have all the necessary evidence before moving forward with a dispositive motion. The Court wants to prevent a situation where Defendant might want to include additional evidence obtained during the continued discovery and then be faced with supplemental or amended motions.

Evidentiary Issues

Defendant filed a Response and Evidentiary Objections to Plaintiff's Additional Material Facts along with its Reply memorandum. As the Court is denying Defendant's MSJ to allow for additional discovery, it need not address the arguments related to the propriety or impropriety of Plaintiff's Response to the Separate Statement.

As for the objections set forth therein, the Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

All written objections must be contained in a *separate* document from the reply memorandum, and must conform to the format set forth in CRC 3.1354(b). The party submitting the written objections "must submit with the objections a proposed order." (CRC 3.1354(c).) Defendant attempts to include objections within its Response to the Separate Statement. The Court declines to consider objections not filed separately in accordance with the California Rules of Court. (*Hodjat v. State Farm Mutual Auto. Ins. Co.* (2012) 211 Cal.App.4th 1, 8-9.) The Court can overrule all of a party's objections on the grounds that they failed to comply with the requirements of Rule 3.1354. (*Schmidt v. Citibank, N.A.* (2018) 28 Cal.App.5th 1109, 1118.)

Conclusion

Defendant Bay Area Restaurant Management Corporation's Motion for Summary Judgment, or in the alternative, Summary Adjudication is **denied without prejudice**. Defendant is authorized to file a new Motion for Summary Judgment, or in the alternative, Summary Adjudication on these same issues once sufficient discovery has been completed by Plaintiff – including the deposition of Ms. Majano.

16. 9:00 AM CASE NUMBER: C25-02162
CASE NAME: PRO-MAX BUILDERS, INC. VS. EXPERT NATIONAL BUILDERS, INC.
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND DEFAULT JUDGMENT
FILED BY: MENLO WESTRIDGE AFFORDABLE PARTNERS, LP
TENTATIVE RULING:

Introduction

Before the Court is Defendant Menlo Westridge Affordable Partner, LP's ("Melo Westridge") Motion to Set Aside Default.

The Court **grants Defendant Menlo Westridge Affordable Partner, LP's Motion to Set Aside Default.**

Procedural Background

This action and the related actions pending in this Court all arise from a construction project located in Richmond, California. In addition to this action, the related actions are: (1) *N Power Electric, Inc. v. Expert National Builders, Inc.*, Contra Costa Super. Ct. Case No. C25-03101; (2) *Nieto Consulting LLC v. ProMax Builders, Inc. et al.*, Contra Costa Super. Ct. Case No. C25-02691; and (3) *Guillen's Specialty Plumbing v. Expert National Builders, et al.*, Contra Costa Super. Ct. Case No. C26-00123. (Suri Decl. ¶ 4.) Menlo Westridge has appeared in the N Power Electric, Inc. case, has not been served in Nieto Consulting LLC case, and was served last week with the Guillen's Specialty Plumbing case. (Id.) Menlo